
Appeal Decision

Site visit made on 10 August 2026

by **S Harrington MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 08 September 2026

Appeal Ref: 6010729

Rosemellyn Fisheries, Roche Road, St Austell PL26 8LB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Alun Kitts, Falmouth Garages Ltd against the decision of Cornwall Council.
 - The application Ref is PA25/05532.
 - The development proposed is addition of shower block and 2 disused railway wagons, a shepherds hut and two caravans for holiday accommodation.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. At my site visit I observed 2 railway wagons, a shepherd's hut and a small caravan the subject of the proposal at the appeal site. Whilst there is planning permission for 2 disused railway wagons, this is in relation to the use for shelter, as opposed to overnight accommodation. The appellant within their submission, including that of the 26th August 2026 indicates that the use of accommodation the subject of this proposal had taken place, and had been advertised for holiday use. The application is therefore partially retrospective, and I have considered the submission accordingly.
3. During the course of the appeal the revised National Planning Policy Framework (Framework) was published. The main parties have had the opportunity to comment on the implications of this change, and no parties will have been prejudiced by my having regard to the latest version in reaching my decision.

Main Issues

4. The main issues are:
 - whether the appeal site would provide a suitable location for the proposal, having regard to the local development strategy and its accessibility by a range of transport modes; and
 - whether the proposal would be appropriate in terms of flood risk, with particular regard to access to the site and safety of future occupants and emergency responders.

Reasons

Location

5. Policy 2 of the Cornwall Local Plan Strategic Policies 2010-2030 (LP) outlines the Council's development strategy. It sets out a sustainable approach to accommodating growth and maintaining the dispersed development pattern of Cornwall and providing jobs in a proportional manner based on the role and function of each place.
6. The proposal would result in additional units of holiday accommodation. Nonetheless, the proposed units would, individually and separately, provide future occupiers, the facilities required for day-to-day private domestic existence. They would not lose that characteristic if they were occupied for only part of the year, or at infrequent intervals, or by a series of different persons. Consequently, the proposed accommodation units exhibit the characteristics of dwellinghouses.
7. LP Policy 3 defines how housing will be accommodated, based on a settlement hierarchy of role and function. Given the appeal site location outside of any defined settlement and for planning purposes, within the countryside, the proposal would not gain support from LP Policy 3. LP Policy 7 concerns housing in the countryside and provides that such development will only be permitted where there are special circumstances. However, the proposal would not accord with any of those special circumstances or exceptions as provided for under LP Policy 7.
8. Notwithstanding the above, planning proposals must be assessed against the policies of the development plan when taken as a whole. In this instance, business and tourism development is addressed by LP Policy 5. Whilst the proposal is an extension of an existing fisheries business and smallholding, the proposal relates to tourism development. In this respect, although LP Policy 5(1)(d) does provide support for an extension to an existing business where re-location would be impractical or not viable, LP Policy 5 (3) directly relates to development of new, or upgrading of existing tourism facilities and accommodation and is therefore directly relevant to the consideration of the proposal.
9. This supports the enhancement of existing or provision of new, high quality sustainable tourism facilities, attractions and accommodation where they would be of an appropriate scale to its location and to its accessibility by a range of transport modes. Proposals should provide a well-balanced mix of economic, social and environmental benefits.
10. Even if the proposal would be of a scale appropriate to its location and is not isolated in that there are some nearby dwellings, it is divorced from any settlement or services and facilities. The nearest facilities are located within Bugle. However, to access these facilities, visitors to the appeal site would need to travel along a relatively fast flowing road.
11. This route would not be conducive to safe pedestrian use due to the distance involved, lack of pavements and safe refuge, as well as lack of street lighting along sections of the route. This could result in conflict between pedestrians and vehicles. Therefore, occupiers of the proposal are unlikely to access the services and facilities which are closest to the appeal site directly by foot, particularly into the evening or during inclement weather.
12. Moreover, the substantive evidence before me indicates that the appeal site is not well served by easily accessible public transport. Therefore, the appeal site is not accessible by a range of transport modes and future occupants would be heavily

reliant on private vehicles. Such reliance on the private vehicle indicates that the proposal would also have an adverse environmental impact.

13. I therefore conclude that the appeal site would not provide a suitable location for the proposal, having regard to the local development strategy and its accessibility by a range of transport modes. The proposal would conflict with LP policies 1, 2, 3, 5 and 7. As well as that outlined previously, these policies seek, amongst other things, to promote sustainable development. The proposal would also be contrary with policies C1 and T1 of the Climate Emergency Development Plan Document (February 2023) (CEDPD) which seeks, amongst other things, to locate new development in order to reduce emissions and minimise the need to travel and maximise the sustainable and active modes of transport in all developments.
14. LP Policy 12 is also cited within the Council's reason for refusal. However, this policy seeks, amongst other things, to achieve high quality safe, sustainable and inclusive design in all developments. Although the proposal may result in a differing character of occupiers' movements, the Council do not argue that the proposal would harm the character or appearance of the area or result in harm to future occupiers or neighbouring occupiers living conditions. On the evidence before me, I see no reason to disagree, and I therefore find no conflict with this Policy and this Policy is not determinative to my assessment of this main issue.

Flood risk

15. Although the footprint of the proposed units of holiday accommodation and shower block are within Flood Zone 1, the appellant's Flood Risk Assessment¹ (FRA) states that part of the access route is within Flood Zone 2 and 3, indicating a medium/high probability of flood from fluvial sources.
16. Policy F7 of the Framework requires that where development is proposed in a location known to be at risk from any form of flooding, now or in the future, it should be refused unless, amongst other things, any residual risk can be safely managed, and safe access and escape routes are included where appropriate, as part of an agreed emergency plan.
17. The appellant has not experienced or is aware of any previous flood events. However, the FRA indicates that at the point of the access track at highest risk of flooding, during a present day 1 in 100 year fluvial flood event the access route could flood to a maximum of 0.68m rising to a maximum of 0.69m during a 1 in 1,000 year flood event, with moderate flow rates. The FRA further outlines the hazard classification associated with moving through the flood water would be "Danger for Most".
18. Mitigation measures are proposed within the FRA in terms of the accommodation units and shower block, and it also suggests that the owners/operators of the site should sign up to the Environment Agency flood warning system. In terms of access and egress during a flood event, the FRA suggests that when exiting occupants should turn to the north at the end of the access road and travel north on the U6114, rather than travelling onto Roche Road through the deepest section of flooding.

¹ Engineering & Development Solutions Report No. J-3647

19. Nevertheless, whilst reducing the time occupants would be within Flood zone 2/3, occupants and/or emergency services would still be required to cross an area within Flood zones 2/3. As such, and although I have no doubt of the appellant's intention to mitigate any risk through good business management, weather forecasting and communication with customers, in the absence of a robust formal emergency plan, I cannot be sure that future occupants would be safe during a flood event.
20. Although the existing fisheries can be operated without any restrictions on number of anglers, visitors on site or hours of operation, the proposal before me would result in overnight occupation of holiday accommodation. The proposal could therefore result in additional visitors at the site and would result in a differing character of use and movements. Consequently, whilst I accept the appellant carries out a duty of care for existing users of the fisheries, this in itself does not lessen the potential risk of occupiers of the proposal.
21. To conclude, the proposal would not be appropriate in terms of flood risk, with particular regard to access to the site and safety of future occupants and emergency responders. The proposal would conflict with LP Policy 27 and CEDPD policies C1 and CC3. These policies seek, amongst other things, to ensure developments provide safe and suitable access, improve resilience to the effects of climate change, avoid areas at risk of flooding and reduce flood risk.

Other Matters

22. The Framework seeks to build a strong, effective economy, with policy S5 supporting development for rural businesses and services, including tourism, where a location outside settlements is shown to be necessary, and policy E4 which supports sustainable growth in rural areas. The proposal would result in some economic benefit both for the appellant, and also the wider local economy from the use of nearby services and facilities by future holiday occupiers. Due to the relatively small scale of the proposal, I afford this benefit modest weight.
23. Nevertheless, whilst the Framework recognises development proposals to meet business needs in rural areas may need to be located outside settlements, and in locations that are not well served by public transport, the Framework at policy TR3 also seeks to locate development in sustainable locations. Moreover, the Framework also seeks to ensure that development does not present a risk from flooding to potential occupiers, to which given the matter involves public safety, I afford substantial weight.
24. I note the appellant's comments about the Council's communication during the planning application and in particular the imposition of the second reason for refusal. This has little to do with the planning merits of the case, which I have considered on the basis of the evidence before me and a recent site visit.

Conclusion

25. For the reasons given above, I find that the proposal would conflict with the development plan, read as a whole. No material considerations have been shown to have sufficient weight to indicate that a decision should be taken otherwise than in accordance with it. Therefore, the appeal is dismissed.

S Harrington INSPECTOR